

23NWCV03648 23NWCV03648

County: los-angeles

Division: Civil Law and Motion

Department: SEL

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Case Number: 23NWCV03648 Hearing Date: June 30, 2026 Dept: SEL

TENTATIVE ORDER

Attorney Lusine

Ghazaryan, Esq.'s Motion to be Relieved as Counsel is GRANTED.

Counsel to give
notice.

Background

This is an action for premises liability. Attorney Lusine Ghazaryan, Esq., counsel for Plaintiffs Martha Portillo and Martha Galvan, now moves to be relieved as counsel.

The Motion is unopposed as of June 30, 2026.

Legal Standard

Good cause exists to grant a motion to be relieved as counsel based on any of the grounds under California Rules of Professional Conduct Rule 1.16(b). Rule 1.16(b) provides that an attorney may withdraw based on any of the following: (1) the client insists upon presenting a claim or defense that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law, (2) the client seeks to pursue a criminal or fraudulent course of conduct, (3) the client insists that the lawyer pursue a course of conduct that is criminal or fraudulent, (4) the client by other conduct renders it unreasonably difficult for the member to carry out the representation effectively, (5) the client

breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation, (6) the client knowingly and freely assents to termination of the representation, (7) the inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal, (8) the lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively, (9) a continuation of the representation is likely to result in a violation of these rules or the State Bar Act, or (10) the lawyer believes in good faith, in a proceeding pending before a tribunal, that the tribunal will find the existence of other good cause for withdrawal.

California Rules of Court, Rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil Procedure section 284, subdivision (2): (1) a notice of motion and motion directed to the client (made on Notice of Motion and Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subdivision (1) (made on Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-052)); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-053)). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

The court has discretion to allow an attorney to withdraw, provided that there is no prejudice to the client. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.)

Discussion

Attorney Lusine

Ghazaryan, Esq. ("Counsel") filed a Notice of Motion and Motion to be Relieved as Counsel. (See Form MC-051.) Counsel also filed a proposed order. (See Form MC-053.) Counsel's declaration demonstrates good cause for withdrawal

based on an “irremediable breakdown in the attorney-client relationship that stands in the way of effective representation.” (Ghazaryan Decl., ¶ 2.)

Counsel states that the clients were served copies of the Motion papers by email and mail at the clients’ last known address (same address), which was confirmed via telephone, in the past thirty (30) days. (Ghazaryan Decl., ¶ 3.)

Counsel has filed a Proof of Service (attached to the Proposed Order) indicating that the clients and all other appearing parties have been served the Motion papers via mail and/or email.

Accordingly, the Motion to be Relieved as Counsel is granted.